

MEMORANDUM OF UNDERSTANDING
Governing
THE MANAGEMENT OF FRESHWATER-DEPENDENT
FISHERIES RESOURCES
Within
THE RESTIGOUCHE RIVER and EEL RIVER WATERSHEDS

25 JAN. 2006

This memorandum is made as of this _____ day of _____, 2005.

BETWEEN: RESTIGOUCHE RIVER WATERSHED MANAGEMENT COUNCIL INC., A NOT-FOR-PROFIT ORGANIZATION REPRESENTING GROUPS INTERESTED IN THE MANAGEMENT AND THE DEVELOPMENT OF FISHERIES RESOURCES WITHIN THE RESTIGOUCHE RIVER WATERSHED, DULY INCORPORATED UNDER THE LAWS OF NEW BRUNSWICK

(hereinafter called "RRWMC")

AND: THE GOVERNMENT OF CANADA, AS REPRESENTED BY THE MINISTER OF FISHERIES AND OCEANS

(hereinafter called "Canada")

THE GOVERNMENT OF NEW BRUNSWICK, AS REPRESENTED BY THE MINISTER OF NATURAL RESOURCES

(hereinafter called "New Brunswick")

THE GOVERNMENT OF QUÉBEC, AS REPRESENTED BY THE MINISTRE DES RESSOURCES NATURELLES ET DE LA FAUNE

(hereinafter called "Québec")

LISTUGUJ MI'GMAQ GOVERNMENT, AS REPRESENTED BY THE CHIEF

(hereinafter called "Listuguj Mi'gmaq First Nation")

EEL RIVER BAR FIRST NATION, AS REPRESENTED BY THE CHIEF

(hereinafter called "Eel River Bar First Nation")

RECITALS:

Subject to fair and reasonable access and use of public resources by all this memorandum seeks to define a partnership between the RRWMC and five signatories (Canada, New Brunswick, Québec, Listuguj Mi'gmaq First Nation and Eel River Bar First Nation) regarding the management and development of the Atlantic salmon, brook Trout (anadromous and resident forms) and other native freshwater-dependent fish species within the Restigouche and Eel River watersheds (hereafter called "**Restigouche and Eel River fisheries resources**").

The signatories wish to create a working partnership to harmonize and strengthen the management programs for the Restigouche and Eel River fisheries resources.

The signatories wish to clarify the respective responsibilities, roles and activities of the six signatories of this Memorandum regarding the management of the Restigouche and Eel River fisheries resources.

The signatories wish to ensure conservation and development of the Restigouche and Eel River fisheries resources for the benefit of all Canadians particularly those participating or otherwise involved in the fisheries for the Restigouche and Eel River fisheries resources and the local communities.

This memorandum of agreement does not affect the constitutional rights of the signatories and does not constitute, nor should be interpreted as, an agreement or treaty within the meaning of section 35 of the Constitution Act, 1982. This memorandum does not define, abrogate, override, deny or recognize ancestral rights or treaty rights and cannot be used as evidence of the nature or scope of these rights. This agreement is not prejudicial to the positions taken by either party with respect to ancestral rights or treaty rights. The purpose of this agreement is to establish a partnership between the signatories and the RRWMC.

Therefore, the signatories agree as follows:

1. Definitions

For purposes of this agreement the following definitions apply:

Conservation – maintaining of fish stocks and their genetic integrity at sustainable levels.

Freshwater-dependent fish species – fish species that require fresh water to complete their life cycle.

Fisheries resources – indigenous wild fish stocks and their supporting habitat.

2. Intentions of the Signatories

- 2.1 This Memorandum defines the commitment of the signatories to jointly assume, according to their respective legislative jurisdictions, the responsibility for the realization of fisheries resource management programs for the Restigouche and Eel Rivers, including their supporting habitat.
- 2.2 The signatories acknowledge that this Memorandum is intended to engage the community, as represented by the RRWMC, in the management of the Restigouche and Eel River fisheries resources in collaboration and cooperation with Canada, New Brunswick, Québec, Listuguj Mi'gmaq First Nation and Eel River Bar First Nation.
- 2.3 The signatories agree that community-based fisheries management is a collaborative process to maximize management capacity and responsibility within the community.
- 2.4 The signatories affirm their mutual commitment to the principles of collaboration and partnership in the areas of resource protection, resource development, stock assessment and research, managing the harvest, education, awareness, communications, economic development and dispute resolution related to the Restigouche and Eel River fisheries resources.
- 2.5 The signatories recognize the importance of involving all parties with vested interests in the Restigouche and Eel River fisheries resources, especially those parties that are likely to be directly affected by eventual decisions made by the RRWMC.
- 2.6 The signatories acknowledge that this Memorandum details the responsibilities, authorities, roles and activities of each of the six signatories to this Memorandum in the managing of the Restigouche and Eel River fisheries resources.
- 2.7 The signatories acknowledge that this Memorandum does not relieve Canada, New Brunswick, Québec, Listuguj mi'gmaq First Nation and Eel River Bar First Nation from their respective responsibilities for managing the Restigouche and Eel River fisheries resources, unless otherwise specified in this Memorandum.

3. Commitments

3.1 All signatories

- 3.1.1 All signatories agree to exercise their respective commitments towards the management and development of the Restigouche and Eel River fisheries resources in accordance with this Memorandum, its annual Work Plans, and any future amendments that may be made to them from time to time.
- 3.1.2 All signatories agree to participate in the development and publication of an annual Work Plan (hereinafter called "Work Plan") that details the activities of the signatories towards the management and development of the Restigouche and Eel River fisheries resources.
- 3.1.3 All signatories agree that this Memorandum does not create an obligation for any of the signatories to provide funding or direct support towards the activities undertaken by any of the other signatories.

3.2 RRWMC

- 3.2.1 The RRWMC agrees to work with all governments to manage the Restigouche and Eel River fisheries resources by:
- Ensuring that all supporting and competing interests in the Restigouche and Eel River fisheries resources have the opportunity to be fairly represented by the RRWMC;
 - Consulting all groups with mutual or conflicting interest in the Restigouche and Eel River fisheries resources and maintaining good communication between them;
 - Respecting aboriginal and treaty rights of the aboriginal peoples of Canada;
 - Respecting private property rights within the Restigouche River and Eel River watersheds; and
 - Properly carrying out any responsibility conferred on it by any of the signatories.

3.3 Canada

- 3.3.1 Canada agrees to work with the RRWMC and the other signatories of this Memorandum to manage the Restigouche and Eel River fisheries resources by:
- Exercising its Constitutional and legislative authority for conservation of fish and fish habitat, and respecting its commitment to the provisions of the Canada – New Brunswick Memorandum of Understanding on Recreational Fisheries;
 - Participating in and contributing to the functioning of the RRWMC Council and its respective Committees;
 - Respecting and contributing to the orderly process and structure between Fisheries and Oceans Canada (hereinafter called DFO), the RRWMC and the signatories;
 - Contributing to fisheries management, resource protection, habitat management, stock assessment and scientific expertise and advice to the RRWMC, and in partnership with the RRWMC and the other signatories;
 - Carrying-out fisheries management, resource protection, habitat management and research programs in support of the fisheries resources of the Restigouche and Eel River when it is deemed important to do so;

- Contributing to the development and attainment of mutually established goals for the conservation and management of fish and fish habitat in the Restigouche and Eel River watersheds;
- Ensuring coordination from within DFO in support of arrangements with the RRWMC and the other signatories;
- Identifying issues and priorities to be addressed through the annual Work Plan;
- Encouraging other federal government departments and agencies to contribute directly to and/or to support the efforts of the other signatories of this Memorandum in regards to the conservation of the fisheries resources of the Restigouche and Eel River;
- Maintaining open and transparent communications with the RRWMC and the other signatories on annual Work Plan activities undertaken by DFO;
- Consulting the RRWMC prior to taking decisions that could affect the conservation and management of the Restigouche and Eel River fisheries resources.

3.4 New Brunswick

3.4.1 New Brunswick agrees to work with the RRWMC and the other signatories of this Memorandum to manage the Restigouche and Eel River fisheries resources by:

- Exercising its constitutional and legislative authority relating to aquatic habitat and the recreational fishery, and carrying out its roles and responsibilities identified in the Canada – New Brunswick Memorandum of Understanding on Recreational Fisheries;
- Participating in and contributing to the functioning of the RRWMC Council and its respective Committees;
- Respecting and contributing to the orderly process and structure between the Department of Natural Resources (hereinafter called DNR), the RRWMC and the signatories;
- Contributing to fisheries management, resource protection, habitat management, stock assessment and research programs, including the provision of expertise and advice to the RRWMC and to the other signatories;
- Contributing to the development and attainment of mutually established goals for the conservation and management of fish, fish habitat and their use in the Restigouche and Eel River watersheds;
- Ensuring coordination from within DNR in support of arrangements with the RRWMC and the other signatories;
- Identifying issues and priorities to be addressed through the annual Work Plan;
- Encouraging other provincial government departments and agencies to contribute directly to and/or to support the efforts of the signatories of this Memorandum in regards to the conservation of the fisheries resources of the Restigouche and Eel River;
- Maintaining open and transparent communications with the RRWMC and the other signatories on annual Work Plan activities undertaken by DNR; and
- Consulting the RRWMC prior to taking decisions that could affect the conservation and management of the Restigouche and Eel River fisheries resources.

3.5 Québec

3.5.1 Québec agrees to work with the RRWMC to manage the Restigouche River fisheries resources by:

- Exercising its constitutional and legislative authority and carrying out its roles and responsibilities related to the conservation, protection and management of freshwater and anadromous/ catadromous fish and their habitat;
- Participating in and contributing to the functioning of the RRWMC Council and its respective Committees;
- Respecting and contributing to the orderly process and structure between Faune Quebec, and the RRWMC;
- Carrying-out fisheries management, resource protection, habitat management and research programs in support of the fisheries resources of the Restigouche River system, when it is deemed important to do so;
- Contributing to fisheries management, resource protection, habitat management, stock assessment and fisheries research programs, notably by the sharing of expertise and advising the RRWMC;
- Encouraging other Quebec government departments and agencies to prioritize and support the efforts of the RRWMC in regards to the conservation of the fisheries resources of the Restigouche River;
- Contributing to the development and attainment of mutually established goals for the conservation and management of fish, fish habitat and their use in the Restigouche River watershed;
- Appointing Faune Quebec to coordinate arrangements with the RRWMC;
- Identifying issues and priorities to be addressed through the annual Work Plan;
- Maintaining open and transparent communications with the RRWMC on annual Work Plan activities undertaken by Faune Quebec;
- Consulting the RRWMC, prior to making decisions that could affect the conservation and management of fish, fish habitat and their use, of the fisheries resources in the Restigouche River watershed;
- Subject to the respect of the commitments made, maintaining open and transparent communications with the RRWMC on its privileged partnership with the Corporation de Gestion des Rivières Matapédia et Patapédia (hereinafter called CGRMP), delegated managers for the sport fishery within the Matapédia and Patapédia Wildlife Reserves.

3.6 Listuguj Mi'gmaq First Nation

3.6.1 Listuguj mi'gmaq First Nation agrees to work with the RRWMC and the other signatories of this Memorandum to manage the Restigouche River fisheries resources by:

- Participating in and contributing to the functioning of the RRWMC Council and its respective Committees;
- Respecting and contributing to the orderly process and structure between the Listuguj mi'gmaq First Nation, the RRWMC and the other signatories;
- Carrying-out fisheries management, resource protection, habitat management and research programs in support of the fisheries resources of the Restigouche River system;

- Contribute to fisheries management, resource protection, habitat management, stock assessment and scientific expertise and advice to the RRWMC, and in partnership with the RRWMC and the other signatories;
- Contributing to the development and attainment of mutually established goals for the conservation and management of fish, fish habitat and their use in the Restigouche River watershed;
- Ensuring coordination from within the Listuguj mi'gmaq First Nation in support of arrangements with the RRWMC and the other signatories ;
- Identifying issues and priorities to be addressed through the annual Work Plan;
- Maintaining open and transparent communications with the RRWMC and the other signatories on annual Work Plan activities undertaken by the Listuguj mi'gmaq First Nation;
- Consulting the RRWMC prior to taking decisions that could affect the conservation and management of Restigouche River fisheries resources.

3.7 Eel River Bar First Nation

3.7.1 Eel River Bar First Nation agrees to work with the RRWMC and the other signatories of this Memorandum to manage the Restigouche and Eel River fisheries resources by:

- Participating in and contributing to the functioning of the RRWMC Council and its respective Committees;
- Respecting and contributing to the maintenance of an orderly process and structure between the Eel River Bar First Nation, the RRWMC and the other signatories;
- Carrying-out fisheries management, resource protection, habitat management and research programs in support of the fisheries resources of the Restigouche River system and, as deemed important, the Eel River;
- Providing fisheries management, resource protection, habitat management, stock assessment and scientific expertise and advice to the RRWMC, and in partnership with the RRWMC and the other signatories;
- Contributing to the development and attainment of mutually established goals for the conservation and management of the fish, fish habitat and their use in the Restigouche and Eel River watersheds;
- Ensuring coordination from within the Eel River Bar First Nation in support of arrangements with the RRWMC and the other signatories;
- Identifying issues and priorities to be addressed through the annual Work Plan;
- Maintaining open and transparent communications with the RRWMC and the other signatories on annual Work Plan activities undertaken by the Eel River Bar First Nation; and
- Consulting the RRWMC prior to taking decisions that could affect the conservation and management of the Restigouche and Eel River fisheries resources.

4. Steering Committee

4.1 The signatories agree to establish a Steering Committee to oversee the implementation of this Memorandum. More precisely, the Steering Committee will:

- Meet at least annually;
- Review and approve the annual Work Plan;
- Review and approve proposed amendments to this Memorandum, including any Schedules that may be developed from time to time;
- Advise and make appropriate recommendations to the signatories to this Memorandum; and
- Establish any sub-committees, working groups or other group thought necessary to carry-out work associated with this Memorandum.

4.2 The Steering Committee will consist of the following members, or their designates:

- The President, Restigouche River Watershed Management Council Inc.;
- The Regional Director-General, Gulf Region, DFO;
- The sous ministre associé, Ministère des Ressources Naturelles et de la Faune – Faune Québec;
- The Deputy Minister, Department of Natural Resources, New Brunswick;
- The Chief, Listuguj Mi'gmaq First Nation;
- The Chief, Eel River Bar First Nation.

4.3 The Chair and secretarial duties of the Steering Committee shall be the joint responsibility of the signatories.

5. Financial Assistance

5.1 The signatories may, at their discretion, and subject to the respective financial administration acts to which they are bound, provide a contribution to the RRWMC in support of this Memorandum.

6. Obligations of the signatories

6.1 For the duration of this Memorandum, the RRWMC agrees not to amend its corporate status from that of a non-profit corporation without share capital incorporated under *the Companies Act of New Brunswick (Chapter C-13 R.S.N.B. 1973)*.

6.2 Any rights, powers, obligations, or responsibilities assumed by any of the signatories under this Memorandum are not assignable, in whole or in part, unless otherwise stipulated in this Memorandum.

6.3 The signatories assume all costs related to their respective participation in any activity undertaken pursuant to this Memorandum, including costs related to their respective participation in the committees created herein, unless otherwise agreed upon in a signed agreement of all signatories.

7. Term and Amendment of the Memorandum

7.1 This Memorandum shall come into force on signing by all signatories.

7.2 This Memorandum may be amended at any time by the mutual consent of all the signatories. Amendments will be confirmed by an exchange of letters among representatives on the Steering Committee, specifying the amendments and the effective date for each amendment. All amendments approved by the Steering Committee may be directly made to the Memorandum, its Schedules, or by the addition of a new Schedule.

7.3 Notice of a proposal by any signatory to amend this Memorandum shall be submitted in writing to the other signatories at least thirty days in advance of any meeting of the Steering Committee at which the proposal would be discussed.

7.4 Any signatory may terminate its participation in this memorandum of agreement at any time by giving advance notice of sixty days to the other signatories. This will give the signatory wishing to terminate its participation the time to submit its observations to the other signatories.

7.5 This agreement shall continue in force unless terminated by mutual consent of the signatories.

8. Agreement

8.1 The signatories acknowledge that the declarations of an individual signatory do not necessarily indicate consensus between the signatories of the present protocole.

IN WITNESS WHEREOF, the signatories have signed:

The Common Seal of the Restigouche River Watershed Management Committee Inc.
herein affixed by its duly authorized signing officer

Tennants,

Ottawa

Place

15/11/05

Date

Ernest Desd

President, Restigouche River Watershed
Management Council Inc.

[Signature]

For Canada as represented by the Minister of Fisheries and Oceans Canada

Ottawa

Place

15/11/05

Date

Jeff Ryan

Minister of Fisheries and Oceans Canada

[Signature]

For Québec as represented by the Ministre des Ressources Naturelles et de la Faune

Québec

Place

06/01/25

Date

Paul

Ministère des Ressources Naturelles et
de la Faune

[Signature]

For New Brunswick as represented by the Minister of Natural Resources

Fredericton

Place

19/12/2005

Date

Keith Ashfield

Minister of Natural Resources

[Signature]

For the Listuguj Mi'gmaq First Nation as represented by the Chief of the Listuguj Mi'gmaq First Nation

Quebec

Place

Jan 25/06

Date

Chief Scott Mart

Chief, Listuguj Mi'gmaq First Nation

Stephen Chase

For the Eel River Bar First Nation as represented by the Chief of the Eel River Bar First Nation

Fredericton

Place

19/12/2005

Date

Ernest Mac

Chief, Eel River Bar First Nation

Steve Chase